

Your firm has agreed to represent **Lionel Toussaint**, a prominent scientist who is a defendant in a recently initiated lawsuit. Your managing partner has asked you to write a memo assessing the complaint in *Alpha Industries, Inc. v. Toussaint*, a breach of contract action. After **Alpha** filed the complaint in the Campbell City Superior Court, **Toussaint**—a citizen of California—successfully removed the case to the U.S. District Court for the Eastern District of Campbell based on diversity. Now, your boss wants you to determine how likely it is that a Rule 12(b)(6) motion will succeed. As a start, she points you to a treatise on breach of contract claims in Campbell:

To prove a breach of contract in the state of Campbell, a plaintiff must establish: (1) the existence of a valid contract between the parties; (2) that the plaintiff performed its obligation(s) under the contract; (3) that the defendant failed to perform its obligation(s); and (4) that the plaintiff suffered damages as a result of the defendant's failure to perform... In Campbell actions, the state's lax notice pleading standards frequently lead to plaintiffs surviving motions to dismiss with relatively bare-bones allegations.

You know from the case file that **Toussaint** is a research scientist who previously worked as a paid consultant for **Alpha Industries**, a technology company owned by billionaire Miles Bron. **Toussaint** has given you a copy of his consulting agreement, which states in relevant part that he is obliged to “maintain strict confidentiality regarding all Alpha Industries proprietary information and research, and shall not disclose any such information to third parties without prior written consent.”

Alpha's complaint alleges, in relevant part, as follows:

¶11: In 2021, Plaintiff and Defendant entered into a Consulting Services Agreement (the “Agreement”), attached to this Complaint as Exhibit A. The provisions of the Agreement are herewith incorporated as though pled.

¶12: The Agreement is a valid and enforceable contract.

¶16: In exchange for compensation, Defendant agreed, in relevant part, to “maintain strict confidentiality regarding all Alpha Industries proprietary information and research, and [to] not disclose any such information to third parties without prior written consent.”

¶20: Plaintiff has at all relevant times performed its obligations under the Agreement by providing Defendant with monthly consulting fees and research stipends as specified in the Agreement. Indeed, Plaintiff has gone above-and-beyond by frequently promoting Defendant's work on behalf of Plaintiff in industry and popular media. Defendant's public association with Plaintiff has redounded to Defendant's benefit in numerous ways.

[**Toussaint** interrupts to tell you that he has had a long-running dispute with Bron about unpaid invoices from 2024, totaling approximately \$76,000, which **Alpha** has refused to pay, claiming the consulting work was “substandard.” **Toussaint** vehemently denies this and thinks **Alpha** is in breach.]

¶21: On May 12, 2025, Defendant attended a renewable energy conference in Baton Rouge, Louisiana (hereinafter, the “Conference”).

¶22: At the Conference, Defendant participated in a panel discussion titled *The Future of Hydrogen Fuel Technology* (hereinafter, the “Panel”).

¶23: During the Panel, Defendant discussed hydrogen fuel cell efficiency metrics and made reference to “recent breakthroughs in testing methodologies” and “a revolutionary catalytic process that could transform the industry.”

¶24: Defendant’s statements during the Panel disclosed Plaintiff’s proprietary research regarding the “Klear” hydrogen fuel technology that Plaintiff had been developing.

¶25: The scientific journal ENERGY TODAY published an article on May 20, 2025, titled *Toussaint Teases Major Hydrogen Breakthrough at Louisiana Conference*, which quoted portions of Defendant’s remarks on the Panel and speculated about their connection to Plaintiff’s research programs.

[**Toussaint** again interrupts your review of the Complaint here to tell you that he only discussed industry trends and publicly available research, and that he specifically avoided mentioning **Alpha** by name or discussing any proprietary details. Toussaint shows you a video recording of the Panel, in which you can hear Toussaint say: “Look, I can’t and won’t discuss specific projects I’m consulting on, but the industry as a whole is moving toward more efficient catalytic processes, and, well, let’s just say I’m sure we’ll see major announcements in the next year or two.”]

¶28: Defendant willfully and deliberately disclosed Plaintiff’s confidential information with the malicious intent to damage Plaintiff’s competitive advantage. Defendant’s Alpha Industries email account history shows that, in the week before the Panel, he emailed a reporter and promised that his remarks would “make some waves” and that “some people”—a clear reference to Alpha CEO Miles Bron—“will not be happy with me afterwards.”

¶29: Plaintiff has suffered substantial harm to its competitive position as a result of Defendant’s unauthorized disclosure, leading to damages from the breach.

¶45: Claim for Relief: Breach of Contract: All prior allegations hereby reincorporated herein, Defendant is liable to Plaintiff for Breach of Contract.

Prompt: Write a brief analysis for your managing partner stating whether a motion to dismiss for failure to state a claim will succeed. You should identify what standard you are applying, and state what, if any, are Toussaint’s best arguments for dismissal, as well as identifying weak points. Your memo should *not* address jurisdiction or whether removal was proper, nor should it rely on substantive contract-law arguments (another associate is reviewing the contract for potential contract defenses). Your memo should not exceed 850 words.

(instructions on next page)

Instructions:

1. Word Limit: 850 words
 - a. At the bottom of your answer **please state “[number] words.”**
 - b. Use the default word count on your word processing software, highlighting just your substantive answer.
 - c. Identifying your word count does not count against your word limit.
2. You may work alone, with a partner, or in groups of up to four.
 - a. Do not discuss the assessment with anyone else—including Grace, other students, or classmates outside of your group.
 - b. You **must list all group members** at the bottom of your answer (does not count against word limit)
 - c. Everyone in the group must **individually turn in an identical copy** via Blackboard
3. You may not use an AI/LLM to help generate your answer.
 - a. This does not include Grammarly or word processor spellcheck functions.
 - b. At the bottom of your answer you **must include the written statement:** “[I/we] did not use an AI/LLM to assist in the preparation of this answer” and **sign your name(s).**
 - c. Electronically typing your name will suffice as a signature.
 - d. This statement and signature does not count against your word limit.
4. This assessment is due **as a .pdf or .docx file submitted via Blackboard** by 12:59 PM on Thursday, 2/26/26.
 - a. This is a strict deadline. No late assessments will be accepted.
 - b. No physical copies will be accepted. If for any reason Blackboard is not working, you may email the submission to me by the deadline.
5. Failure to follow these instructions will result in a deduction from your grade on the assessment, which will otherwise be +4 for good-faith effort and +1 for exceptional performance.

Example signature block:

848 words

Group Members: Luke Smith Morgan, Jesse Williams

We did not use an AI/LLM to assist in the preparation of this answer.

/s/ Luke Smith Morgan, Jesse Williams